

Line 5

Case Name: *Vahe Tashjian v. Planet Home Lending, LLC, et al.*

Case No.: 20CV371971

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

On July 14, 2026, Plaintiff Vahe Tashjian (“Plaintiff”) filed this motion to release to Plaintiff \$304,000.00 in bond money that Plaintiff paid into the Court as a condition of enjoining the pending foreclosure sale on his property located at 901 Loyola Drive, Los Altos, CA 94024. Notice of Motion (the “Motion”) at 1:20-24 (filed: July 14, 2026). This Motion is set for hearing on September 9, 2026.

However, as Plaintiff is well aware, less than one month before Plaintiff filed this Motion on July 14, 2026, nonparty Bell Investment Partners, LLC (“Bell Investment”) on June 15, 2026 filed an ex parte application to release to Bell Investment the same exact \$304,000.00 in bond money. According to Bell Investment in that ex parte application, a “valid and unsatisfied money judgment has been entered in favor of Judgment Creditor Bell Investment against Judgment Debtor Vahe Tashjian”—Plaintiff in this action—and “[b]ecause the funds on deposit represent property in which Judgment Debtor holds a ‘right to payment’ or ‘beneficial interest,’ the funds are subject to enforcement and turnover under Code of Civil Procedure Sections 708.510.” Ex Parte Application at 1:25-2:2:2 (filed: June 15, 2026, Case No. 20CV371971. Plaintiff is keenly aware of that application because Plaintiff promptly filed an opposition to it that same day on June 15, 2026.

As Plaintiff is also aware, later that same day on June 15, 2026, the Court signed and dated an Order DENYING Bell Investment’s ex parte application. The Court did *not* reach the merits of that application but rather denied it solely on the ground that it did not meet the standard for emergency ex parte relief of showing that “irreparable harm or immediate danger will result if emergency relief is not granted.” Order at 2:8-10 (citing CRC 3.1202(c)) (filed: June 24, 2026.). Making crystal clear to all that the Court wants this important issue of who gets the \$304,000.00 decided in the normal course after full briefing by noticed motion involving *all* relevant parties, the Court ORDERED Bell Investments: “Bring a noticed motion.” *Id.* at 2:12.

When Plaintiff on July 14, 2026 filed a noticed Motion to release to Plaintiff the \$304,000.00 bond, the Clerk of the Court set Plaintiff’s Motion for hearing on September 9, 2026. But when Bell Investments, following the Court’s direct order to bring a noticed motion, filed its noticed motion (styled as an “application”) just one week later on July 21, 2026—to release the exact same \$304,000.00 bond—the Clerk of the Court set Bell Investments’ motion for hearing on April 28, 2027.

Disappointingly, despite Plaintiff's counsel being well aware of Bell Investment's noticed motion filed on July 21, 2026 and set for hearing on August 28, 2027, instead of meeting and conferring with Bell Investment's counsel to try to reach a stipulation when both of these entwined motions about the same exact \$304,000.00 bond could be heard on the same hearing date, Plaintiff doubled down by filing a "Notice of Non-Opposition" with an accompanying Declaration by Plaintiff's counsel Caleb Gonzalez on September 1, 2026.

Despite well knowing that Bell Investment's position is that this \$304,000.00 bond should be released to Bell Investments, attorney Gonzalez *quite misleadingly* tells the Court in his sworn Declaration that there is "no opposition" to Plaintiff's Motion *to release the \$304,000.00 bond to Plaintiff* and pretends that "[i]t is not clear why counsel for Bell Investment Partners, LLC, filed a separate motion seeking [the same] funds[.]" Declaration of Caleb Gonzalez at ¶ 8 (filed Sept. 1, 2026).

Attorney Gonzalez would be wise to never make a misleading statement like that to the Undersigned Judge again. Attorney Gonzalez knows *exactly* why Bell Investments filed its noticed motion to release the \$304,000.00 bond to Bell Investments—because the Court directly *ordered* Bell Investments to do so in the Court's June 15, 2026 Order. See Order at 2:12 ("Bring a noticed motion.")

While attorney Gonzalez would no doubt protest that it is (hyper)technically true that Bell Investments did not file a separate **opposition brief** to Plaintiff's Motion, attorney Gonzalez knows beyond any doubt that it is Bell Investments position of record in *this* case that the \$304,000.00 bond should be released to Bell Investments, *not* to Plaintiff—and so Bell Investments does in fact **oppose** the release of the \$304,000.00 bond to Plaintiff now. See June 15, 2026 Ex Parte Application by Bell Investments to Release Bond *and* July 21, 2026 Noticed Motion by Bell Investments to Release Bond. To suggest otherwise and not engage the arguments of Bell Investments on their merits is, to say the least, not in keeping with the high standards of professionalism expected by counsel who appear in Santa Clara County Superior Court.

Given the importance of this issue of whom the Court will release the \$304,000.00 bond to, the Court demands full briefing on *both* Plaintiff's Motion filed on July 14, 2026 and Bell Investment's Motion filed on July 21, 2026. To that end, the Court ***sua sponte*** **CONTINUES** the hearing on Plaintiff's Motion to April 28, 2027 at 9:00 in Department 16, where the Court will hear argument on Plaintiff's Motion to Release the \$304,000.00 bond during the same hearing and at the same time already set for hearing on Bell Investments' Motion to Release the \$304,000.00 bond. All Opposition and Reply papers to both those motions will be filed pursuant to the deadlines set forth in Code of Civil Procedure Section 1005(b), pegged to the April 28, 2027 hearing date on both motions.

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Conclusion & Order

For the reasons explained above, the Court ***sua sponte* CONTINUES** Plaintiff's Motion to release to Plaintiff the \$304,000.00 bond money. Specifically, the Court **ORDERS:**

1. **Plaintiff's Motion** is **CONTINUED** to April 28, 2027, at 9:00 AM in Department 16.
2. **Bell Investment's motion** to release to Bell Investment the \$304,000 bond money **REMAINS AS SET** on April 28, 2027, at 9:00 AM in Department 16.
3. Opposition and Reply papers to both those motions will be filed per Section 1005(b), pegged to the April 28, 2027 hearing date for both motions.
4. Plaintiff's counsel Gonzales will serve a copy of this **ORDER** on counsel for Bell Investment—Catherine Schlomann Robertson and Ginger L. Sotelo of Spencer Fane LLP— both by email and by overnight Federal Express today.

SO ORDERED.

Date: September 9, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 6

Case Name: *Swaminathan Nandakumar, et al. v. David Plagens, et al.*

Case No.: 22CV397444

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Cross-Complainants David Plagens and Lisa Plagens (the “Plagens Cross-Complainants”) move under Code of Civil Procedure Section 664.6 to enforce the settlement agreement reached by a written email exchange on June 17-18, 2026. Notice of Motion (the “Motion”) at 1:22-25 (filed: July 13, 2026).

The Motion came on for hearing on September 9, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Facts

This is a neighbor and property-line dispute between the Nandakumars (Plaintiffs/Cross-Defendants) and the Plagens (Defendants/Cross-Complainants) over conflicts over a shared fence and boundary line. Plaintiffs filed the present Complaint on April 22, 2022, and Defendants filed their Cross-Complaint on September 16, 2022. Suffice it to say that these parties have a long history of litigation over the same fence and property issues.

Focusing on the present Motion, on June 17, 2026, at 7:56 p.m., Cross-Complainants’ then-counsel, Keeley Vega of Thompson Hine LLP, sent an email to Cross-Defendants’ counsel, Austin Houvener of Toschi Doyle Houvener & Wellen with a settlement demand. Declaration of David Plagens (“Plagens Decl.”) in Support of Motion at ¶ 3. The email stated: “I am writing to check in on the settlement offer from the Plagens communicated to you verbally this afternoon: a \$100k payment in exchange for the dismissal of the Plagens’ cross claims with no non-monetary terms.” Plagens Decl., Ex. A (the “June 17 email”). The June 17 email requested “a response by no later than 9:00 am tomorrow in view of the scheduled trial setting” *Id.*

On June 18, 2026, at 8:23 a.m., Mr. Houvener, counsel for the Nandakumars, replied by email, stating: “CSAA, on behalf of its insureds Rekha and Swaminathan Nandakumar, accepts the below demand from the Plagens for \$100,000.” Plagens Decl., Ex. B (the “June 18 reply email”). Yet the same June 18 reply email stated: “Attached please find a draft release for your clients’ review and comment. This is a draft and we ask that your clients track changes and send any requested changes back for review. If there are no changes, please have your clients sign and return along with your office’s requested draft instructions” *Id.*